

## Tentative Rulings for July 20, 2026 Department 5

**To request oral argument, you must notify Judicial Secretary  
Crystal Marias at (760) 904-5722  
and inform all other counsel no later than 4:30 p.m.**

This court follows California Rules of Court, Rule 3.1308 (a) (1) for tentative rulings (see Riverside Superior Court Local Rule 3316). Tentative Rulings for each law & motion matter are posted on the Internet by 3:00 p.m. on the court day immediately before the hearing at [Riverside Superior Court-Tentative Rulings](#). If you do not have Internet access, you may obtain the tentative ruling by telephone at (760) 904-5722.

To request oral argument, no later than 4:30 p.m. on the court day before the hearing you must (1) notify the judicial secretary for Department 5 at (760) 904-5722 and (2) inform all other parties of the request and of their need to appear remotely, as stated below. If no request for oral argument is made by 4:30 p.m., the tentative ruling **will become the final ruling** on the matter effective the date of the hearing. **UNLESS OTHERWISE NOTED, THE PREVAILING PARTY IS TO GIVE NOTICE OF THE RULING.**

For information and instructions on remote appearances via **ZOOM**, visit the court's website at [Riverside Superior Court-Remote Appearances](#)

You may also make a Telephonic Appearance: On the day of the hearing, call into one of the below listed phone numbers, and input the meeting number (followed by #):

- Call-in Numbers: 1-833-568-8864 (Toll Free), 1-669-254-5252,  
1-669-216-1590, 1-551-285-1373 or 1-646-828-7666
- Meeting Number: **161 782 8254**

Please **MUTE** your phone until your case is called and it is your turn to speak. It is important to note that you must call fifteen (15) minutes prior to the scheduled hearing time to check in or there may be a delay in your case being heard.

**Riverside Superior Court provides official court reporters for hearings on law and motion matters only for litigants who have been granted fee waivers and only upon their timely request. (See General Administrative Order No. 2021-19-1) Other parties desiring a record of the hearing must retain a reporter pro tempore.**

1.

| CASE #      | CASE NAME                                    | HEARING NAME                                                           |
|-------------|----------------------------------------------|------------------------------------------------------------------------|
| CVRI2404430 | ALDAMA vs COSTCO<br>WHOLESALE<br>CORPORATION | MOTION TO COMPEL<br>PRODUCTION OF DOCUMENTS<br>REQUESTED AT DEPOSITION |

**Tentative Ruling:**

The plaintiffs' motion to compel production of documents at deposition is granted in part and denied in part. Specifically, it is granted as to all of the described documents that were in the defendant's possession prior to the retention of outside counsel. It is otherwise denied but on the condition that the defendant agrees on the record to abandon affirmative defenses ##11, 16, and 18 and to strike them from the defendant's answer.

The defendant's request for sanctions is denied.

**Analysis:**

As to responsive documents possessed by the defendant prior to the retention of counsel, the claim that responsive documents are attorney work-product fails. As to those documents, the objections are overruled and the motion is granted. The declaration of Koenig establishes that the remaining documents requested qualify as attorney work-product and are therefore privileged unless the defendant has placed the sufficiency of the investigation at issue. No evidentiary objection has been raised to that declaration. The defendant has represented that it is no longer relying upon affirmative defenses ##11, 16, and 19, but has not sought to amend its answer or formally abandon its reliance upon those defenses. If such an abandonment is made on the record, then the objection shall be sustained and the motion shall be denied. Because the motion is not entirely denied, the defendant's request for sanctions is denied.

2.

| CASE #      | CASE NAME                           | HEARING NAME                    |
|-------------|-------------------------------------|---------------------------------|
| CVRI2503187 | SUGIHARTO vs<br>SOLARIS PAPER, INC. | MOTION TO COMPEL<br>ARBITRATION |

**Tentative Ruling:**

The plaintiff's request for judicial notice is denied. The defendant's motion to compel arbitration is denied.

**Analysis:**

The documents of which judicial notice is requested are irrelevant to the Court's analysis, and the request is denied for that reason.

The party seeking enforcement of an electronically signed contract may sufficiently authenticate the agreement by producing evidence explaining that the signor had a unique username and password and providing the step-by-step process necessary for signing, as well as affirming that the signature could only have been placed on the document by the employees. (*Espejo v. Southern California Permanente Medical Group* (2016) 246 Cal. App. 4th 1047, 1060.) “A proponent seeking to authenticate an electronic signature must show the electronic signature ‘was the act of the person,’ which could be shown ‘in any manner, including a showing of the efficacy of any security procedure applied to determine the person to which the electronic record or electronic signature was attributable.’” (*Garcia v. Stoneledge Furniture LLC* (2024) 102 Cal. App. 5th 41, 53.) “[T]he burden of authenticating an electronic signature is not great.” (*Ruiz v. Moss Bros. Auto Group, Inc.* (2014) 232 Cal.App.4th 836, 844.)

Here, the defendant relies on the declaration of its Senior HR Manager, Ms. Galindo-Castro. She represents that on October 30, 2020, Plaintiff executed the Arbitration Agreement which was in his personnel file. (Decl. of Galindo-Castro, ¶ 7.) The Arbitration Agreement is not actually signed, although there is a separate document attached indicating that ADP verifies the electronic signature. (Id, Ex. A.) That evidence is insufficient to show that the alleged electronic signature was the act of Plaintiff. Ms. Galindo-Castro states only that personnel documents are generally provided to employees with time to review and execute them, which are then placed in the employee’s personnel file. This is insufficient to establish the veracity of the electronic signature. There is no evidence showing that only Plaintiff could have electronically signed the Arbitration Agreement based on a unique user name and password. There is no evidence that anyone observed Plaintiff signing the Agreement. Nor is there any evidence from ADP as to the method by which the plaintiff’s signature was “verified.” Because Defendant has not established that the Arbitration Agreement was executed by Plaintiff, it has not established the existence of a valid arbitration agreement. Therefore, the motion fails.

Because the motion fails, the Court need not consider whether the defendant waived arbitration or whether the agreement is unconscionable.

**3.**

| CASE #      | CASE NAME                                              | HEARING NAME        |
|-------------|--------------------------------------------------------|---------------------|
| CVRI2503782 | ITRIA VENTURES LLC<br>vs MAINVIEW<br>MULTINATIONAL LLC | MOTION TO SET ASIDE |

**Tentative Ruling:**

The motion of Mainview Multinational, LLC, to set aside the default entered against it is denied.

**Analysis:**

The motion is brought in reliance upon CCP section 473.5. Subdivision (b) of that section requires the defendant's motion to be accompanied by the "answer, motion, or other pleading proposed to be filed." The moving defendant failed to file such a pleading with its motion for relief.

**4.**

| CASE #      | CASE NAME                                 | HEARING NAME                                 |
|-------------|-------------------------------------------|----------------------------------------------|
| CVRI2600311 | WU vs J&J REAL ESTATE INVESTMENT FUND LLC | ANTI-SLAPP MOTION (SPECIAL MOTION TO STRIKE) |

**Tentative Ruling:**

The defendant's request for judicial notice is denied. The defendant's anti-SLAPP motion is denied.

**Analysis:**

The documents of which judicial notice is requested are irrelevant to the Court's analysis. For that reason, the request is denied.

The Court may decline to hear any anti-SLAPP motion that is filed more than 60 days after service of the complaint on the moving defendant. (CCP section 425.16, subd. (f).) Here, the motion was not filed until 52 days after the statutory deadline.

The defendant did not even address the issue of timeliness in its motion. It belatedly raised the issue in its reply, but even then did not explain why the Court should exercise its discretion to hear a late motion under the instant factual and procedural circumstances. It did not, for example, explain why the motion could not in the exercise of reasonable diligence have been filed sooner than 52 days after the deadline had passed.

The Court declines to hear the untimely motion.